NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH, COURT – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, CHENNAI BENCH, HELD ON 02.03.2026 AT 10.30 A.M. THROUGH VIDEO CONFERENCING:

PRESENT: SHRI. JYOTI KUMAR TRIPATHI, HON'BLE MEMBER (JUDICIAL)
SHRI. RAVICHANDRAN RAMASAMY, HON'BLE MEMBER (TECHNICAL)

APPLICATION NUMBER : C.A.(CAA)/06(CHE)2026

PETITION NUMBER : --

NAME OF THE APPLICANT : Unifi Capital Pvt Ltd

NAME OF THE RESPONDENT(S) : --

UNDER SECTION : Sec 230 - 232 of CA, 2013

ORDER

Present: Ld. Counsel Mr. Pawan Jhabakh for the Applicant.

Vide separate order pronounced in open court, **C.A.(CAA)/06(CHE)2026** is allowed.

-SD-
RAVICHANDRAN RAMASAMY
Member (Technical)

-SD-
JYOTI KUMAR TRIPATHI
Member (Judicial)

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IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH - II, CHENNAI
CA (CAA)/ 6 (CHE)/ 2026

(Under Sections 230 to 232 of the Companies Act, 2013)

In the matter of Scheme of Arrangement of Unifi Capital Private Limited (Demerged Company) with Unifi Financial Private Limited (Resulting Company) and their shareholders

UNIFI CAPITAL PRIVATE LIMITED,
(CIN: U67120TN2001PTC046392)
Having its Registered Office at 11 Kakani Towers,
15, Khader Nawaz Khan Road, Greams Road,
Chennai, Tamil Nadu – 600 006.
Represented by its Chief Financial Officer,
Mr. T. E. Govindarajan, Authorized signatory

… 1st Applicant /Demerged Company

With

UNIFI FINANCIAL PRIVATE LIMITED,
(CIN: U65993TN2008PTC066817)
Having its Registered Office at 11 Kakani Towers,
15, Khader Nawaz Khan Road,
Chennai, Tamil Nadu – 600 006.
Represented by its Director,
Mr. K. Narendranath, Authorized signatory

… 2nd Applicant / Resulting Company

*Order Pronounced on **2nd March 2026***

CORAM

Shri. JYOTI KUMAR TRIPATHI, MEMBER (JUDICIAL)
Shri. RAVICHANDRAN RAMASAMY, MEMBER (TECHNICAL)

Present:
For Applicants: Mr. Pawan Jhabakh, Advocate

ORDER

(Hearing through hybrid mode)

1. The present application have been filed jointly by the Applicant Companies, namely **UNIFI CAPITAL PRIVATE LIMITED** (hereinafter "*Demerged Company*) with **UNIFI FINANCIAL PRIVATE LIMITED** (hereinafter "*Resulting Company"*) under sections 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement (hereinafter referred to as the "**SCHEME**") proposed by the Applicant Companies. The said Scheme is appended as **"Annexure 13"** in the application.

2. The Applicant Companies in this Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
FIRST APPLICANT	Dispense with meeting	Dispense with meeting	Dispense with meeting
SECOND APPLICANT	Dispense with meeting	NIL No Prayer	NIL No Prayer

3. Affidavits in support of the present Application sworn for and on behalf of the Applicant Companies have been filed by its authorized signatories, details of which are listed hereunder: -

   i) **Mr. T. E. Govindarajan,** on behalf of the 1st Applicant Company/ Demerged Company**,** as its Chief Financial Officer / Authorized signatory.

   ii) **Mr. K. Narendranath,** on behalf of the 2nd Applicant Company/ Resulting Company**,** as its Authorized signatory.

4. It is submitted that the Demerged Company is a Private Limited Company, incorporated under the provisions of Companies Act, 1956 on 02.01.2001 with name **UNIFI CAPITAL PRIVATE LIMITED**. The Share Capital of the Transferor Company as on 31.10.2025 is as follows:

PARTICULARS	**AMOUNT IN RS.**
AUTHORISED SHARE CAPITAL 3,25,00,000 Equity shares of Rs.1/- each	**3,25,00,000**
ISSUED, SUBSCRIBED AND PAID UP SHARE CAPITAL 1,55,73,176 Equity shares of Rs.1/- each	**1,55,73,176**

MAIN OBJECTS OF THE DEMERGED COMPANY IN BRIEF:

"a. The main objects of Demerged Company are set out in its memorandum of association and inter alia, as follows:

a. To carry on and undertake the business of Portfolio Management offering discretionary and non-discretionary schemes, for investment and trading in equities, certificate of deposits, promissory notes, index derivatives, fixed income derivatives, warrants, obligations, commercial paper, equity shares, preference shares, stocks, debentures (convertible and non-convertible), and securities of any kind issued or guaranteed by any company constituted or carrying on business in India or elsewhere and debentures, bonds, obligations and securities issued or guaranteed by Govt-central or State-Public body or authority, municipal, local or otherwise, firm or persons whether in India, or elsewhere Government Securities including Government Bonds, Loans, National Savings Certificates, Post Office Savings schemes, Units of Unit Trust of India, Mutual Funds on behalf of individuals, firms, companies, trusts, charities, pension funds, societies, associations, clubs, benefit funds, co-operatives, banks and other persons and to seek such approvals as may be required to carry on any one or all of the above from

such designated/regulatory/appropriate authorities/bodies constituted under various applicable laws in India or elsewhere.

b. To carry on the business of stock broking and for that purpose acquire the membership in one or more stock exchange(s), and other related services and to hold and deal, as a share/securities consultant, in shares, stocks, debentures, bonds, obligation, and Government securities, including Government Bonds, Loans, National Savings Certificates, Post Office saving schemes, Units of Unit Trust of India, Mutual Funds and securities of any kind issued or guaranteed by any company constituted or carrying on business in India or elsewhere and debentures, bonds, obligations and securities, issued or guaranteed by Govt-Central or State-public body or authority, municipal, local or otherwise, firm or persons whether in India or elsewhere; to undertake Depository Participant Services for shares, bonds and such other tradable instruments and for that purpose acquire registration with one or more Depository(s) and to seek such approvals as may be required to carry on any one or all of the above from such designated/regulatory/appropriate authorities/bodies constituted under various applicable laws in India or elsewhere.

c. To carry on the business as corporate agents and/or insurance brokers in the field of life insurance and non-life insurance and to perform any other allied business and service that may be notified by the Insurance Regulatory and Development Authority under the provisions of Insurance Regulatory and Development Authority Act, 1999.

d. To carry on the business of merchant bankers, investment bankers, investment/fund managers, investment/fund advisors, fund administrators, registrar and transfer agents, certifying authorities, custodians, managing and administering back office operations like transactions processing, payment and receipt processing, secretarial and accounting services, issue house, financial planners, representatives, middle-men or any other consultancy or to distribute

mutual funds, public offerings, bonds, fixed deposits, loans secured and unsecured, various banking and financial products and other related fee-based services in India or elsewhere, managing private placements of debts and equity instruments and intermediaries for arranging loans of various structures and corporate finance and to seek such approvals as may be required to carry on any one or all of the above from such designated/regulatory/appropriate authorities/bodies constituted under various laws, rules, regulations, guidelines, etc., in India or elsewhere.

e. To carry on the business of constituting venture capital funds, resources from within India or elsewhere, managing such funds by making appropriate investments and to act as investment advisors/agents, for venture capital and other funds sponsored by third party institutions and individuals and firms located in India or elsewhere and to seek such approvals as may be required to carry on any one or all of the above from such designated/regulatory/appropriate authorities/bodies constituted under various applicable laws in India or elsewhere.

f. To acquire and trade as stock in trade, invest and deal with and hold stocks, shares, debentures, stocks, bonds, notes, obligations, savings certificates, securities and mutual funds units issued or guaranteed by any company or body corporate and stocks, shares, debentures, debenture stocks, bonds, obligations, savings certificates and securities issued or guaranteed by any state or central government, public body or authority, municipal, local or otherwise whether in India or elsewhere.

g. To carry on mutual fund activities in India, acting as a sponsor to a Mutual Fund, incorporating and causing the incorporation of and/or acquiring and holding shares in an asset management company to manage such Mutual Fund and to perform such other functions and engage in such other activities relating to the Mutual Fund business as permitted under the applicable laws.

h. To form, setup, incorporate, constitute, create etc. any pooled investment vehicle(s) (including but not limited to a Company, Partnership, Trust etc.), for engaging in the business of pooled investments, including but not limited to any business permitted under the Securities and Exchange Board of India (Alternative Investment Funds) Regulations, 2012 and amendments thereof and for this purpose issue any preferred or deferred or any other special stocks, securities, certificates or units based on or representing any share, stock or other assets specifically appropriated for the purpose of any such investment vehicle and to settle, sponsor, manage, supervise, control, regulate such investment vehicle(s) and if thought fit and to dispose of, or hold any such preferred, deferred or other special stocks, securities, certificates or units and for this purpose to appoint and remove any person or persons including trustees to hold such stocks, securities, certificates, units or assets on behalf of any such pooled investment vehicle(s) and to protect the interests of such investment vehicle(s), its beneficiaries and to remunerate the persons so appointed for services rendered at such rates or amounts as thought fit."

5. It is submitted that the Resulting Company is a Private Limited Company, incorporated under the provisions of the Companies Act, 1956 on 14.03.2008 with name **UNIFI FINANCIAL PRIVATE LIMITED**. The Share Capital of the Transferee Company as on 31.10.2025 is as follows:

PARTICULARS	**AMOUNT IN RS.**
AUTHORISED SHARE CAPITAL 10,25,00,000 Equity shares of Rs.1/- each	**10,25,00,000**
ISSUED, SUBSCRIBED AND PAID UP SHARE CAPITAL 9,95,00,000 Equity shares of Rs.1/- each	**9,95,00,000**

MAIN OBJECTS OF THE RESULTING COMPANY IN BRIEF:

"a. The main objects of Resulting Company are set out in its memorandum of association and inter alia, as follows:

a. To carry on the business of an investment company in all its branches and without prejudice to generality of the foregoing to buy in and to invest in, acquire, sell, transfer, underwrite, subscribe for, hold and otherwise deal in and invest in any shares, bonds, stock, obligations issued or guaranteed by any company or companies constituted and carrying on business in India or elsewhere and debentures, debenture stocks, bonds, obligations and securities issued or guaranteed by any Government, State, Sovereign Commissioners, Central or Provincial public body or authority supreme, municipal, local or otherwise where in India or elsewhere and to promote, form or acquire any company and to purchase or acquire shares or interest in any company and to transfer to any such company any property of this company either out of its own funds or out of funds that it might borrow.

b. To take or otherwise acquire, hold and dispose of or otherwise deal in and investment in any shares, debentures and other securities in or of any Company or Companies either out of its own fund or out of funds that it might borrow by issue of debentures or from bankers or otherwise however or in any other manner whatsoever and to subsidise or otherwise assist any such Company.

c. To offer consultancy services relating to investment pools, mutual funds, syndicates in shares, stocks, securities, real estate, artwork, paintings, manuscripts, coins.

d. To offer administrative services relating to investment pools, mutual funds, syndicates in shares, stocks, securities, real estate, artwork, paintings, manuscripts, coins.

e. To invest funds of the Company, including borrowed funds, in various schemes of Mutual Funds, Asset Management Companies, Government Securities and

bonds, instruments of financial Institutions, banks, reserve bank, any foreign government or foreign banks or foreign authorities or public bodies; purchase, hold and/or sell, resell metal, bullion, traded commodities, securities, derivatives and currency derivatives, gold and silver articles, diamonds, precious stones, ornaments, jewellery, paintings, coins, manuscripts, objects of art, land building, etc.

f. To borrow or raise money in such a manner the Company shall think fit, and in particular, by the issue of debentures or series of debentures, perpetual or otherwise charged upon all or any part of the company's assets both present and future, including its uncalled capital and to purchase, redeem or to pay off such securities and to deal with the monies so raised in a manner deemed fit and proper subject to the laws, rules, regulations, guidelines laid down from time to time by the relevant statutory and regulatory authorities.

6. Applicant companies have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses. The Applicant Companies have filed their audited financial Statements as on 31.03.2025 and is placed at ***Annexure 4*** and ***Annexure 9*** respectively.

7. The Present Scheme provides for Arrangement of Applicant companies and the rationale of the scheme is as follows:

"RATIONALE FOR THE SCHEME

a. Consolidation of Fixed Income Securities and Structured Instruments division of UCPL in UFPL.

b. Better management of business operations of the respective divisions based on the size of operations and other characteristics.

c. Enabling flexibility of operations, raise funds and/ or monetisation for future growth.

d. Greater flexibility and visibility on the operational and financial performance of both the divisions and would provide higher degree of independence as well as accountability.

e. Create enhanced value for shareholders and allow a focused strategy and specialization for sustained growth, which would be in the best interest of all the stakeholders and the persons connected with the companies involved.

f. Seek better investment opportunities for different undertakings / business actions of the companies.

8. The Board of Directors of the Demerged Company and the Resulting Company in the meeting held on 18.11.2025, has approved the proposed Scheme as contemplated above. Certified Copies of the Board resolutions passed thereon have been placed on record by the companies on Page no. 185 - 190 as **Annexure 11 and 12** of the application respectively.

9. The Statutory Auditors of both the Applicant Companies have certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.

10. With respect to **UNIFI CAPITAL PRIVATE LIMITED *(Demerged Company)***, it is submitted as under:

I. EQUITY SHAREHOLDERS:

There are **16 (Sixteen)** Equity Shareholders and the List of equity shareholders to this effect as on 31.10.2025 is placed on record as a certificate issued by the Charted Accountant at Pg.No.225-226 as **Annexure 14**. Consent by way of Affidavits was given by all the Equity Shareholders amounting to 100% is also placed on record at Pg.No.227-290 as **Annexure 15** and the Demerged Company has sought to *dispense with the meeting*.

II. SECURED CREDITORS:

There is **1 (One)** Secured Creditor. Certificate has been issued by the Chartered Accountant to this effect as on 31.10.2025 is placed along with the application at Pg.No.291 as **Annexure 16**. Consent by way of Affidavits was given by all the Equity Shareholders amounting to 100% is also placed on record at Pg.No.292-308 as **Annexure 17** and the Demerged Company has sought to *dispense with the meeting*.

III. UNSECURED CREDITORS:

There is **3 (Three)** Unsecured Loan Creditors. Certificate has been issued by the Chartered Accountant to this effect as on 31.10.2025 is placed along with the application at Pg.No.309-313 as **Annexure 18**. Consent by way of Affidavits was given by 15 of the Unsecured Loan Creditors amounting to 100% is also placed on record at Pg.No.314-330 as **Annexure 19** and the Demerged Company has sought to *dispense with the meeting*.

11. With respect to **UNIFI FINANCIAL PRIVATE LIMITED *(Resulting Company)***, it is submitted as under:

I. EQUITY SHAREHOLDERS:

There are **2 (Two)** Equity Shareholders and the List of equity shareholders to this effect as on 31.10.2025 is placed on record as a certificate issued by the Charted Accountant at Pg.No.331 as **Annexure 20**. Consent by way of Affidavits was given by all the Equity Shareholders amounting to 100% is also placed on record at Pg.No.332-342 as **Annexure 21** and the Resulting Company has sought to *dispense with the meeting*.

II. SECURED CREDITORS:

There is **Nil** Secured Creditor. Certificate has been issued by the Chartered Accountant to this effect as on 31.10.2025 is placed along with the application at Pg.No.343 as **Annexure 22**.

III. UNSECURED CREDITORS:

There is **Nil** Unsecured Creditor. Certificate has been issued by the Chartered Accountant to this effect as on 31.10.2025 is placed along with the application at Pg.No.344-345 as **Annexure 22**.

12. Taking into consideration the submissions and the documents on record, this Tribunal issues the following directions: -

A) IN RELATION OF DEMERGED COMPANY:

I) With respect to Equity shareholders:

Since it is represented that there are **16 (Sixteen**) Equity Shareholder in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with.*

II) With respect to Secured Creditors:

Since it is represented that there are **1 (One)** Secured Creditors in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with.*

III) With respect to Unsecured Loan Creditors:

Since it is represented that there are **3 (Three)** Unsecured Creditors in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with*.

IN RELATION OF RESULTING COMPANY:

I) With respect to Equity shareholders:

Since it is represented that there are **2 (Two)** Equity shareholders in the Company whose consents by way of affidavits forming 100% value have been obtained and are placed on record, the necessity to convene and hold a meeting is *dispensed with.*

II) With respect to Secured Creditors:

It is represented that there is **Nil** Secured Creditors in the Company, the necessity to convene and hold a meeting is *dispensed with.*

III) With respect to Unsecured Creditors:

It is represented that there is **Nil** Unsecured Creditors in the Company, the necessity to convene and hold a meeting is *dispensed with.*

13. Accordingly, the Application, CA (CAA)/ 6 (CHE)/ 2026 stands **allowed** on the aforesaid terms and is **disposed of**.

-Sd-	-Sd-
RAVICHANDRAN RAMASAMY	**JYOTI KUMAR TRIPATHI**
MEMBER (TECHNICAL)	MEMBER (JUDICIAL)